

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0026

☒ **ORIGINAL**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMC/AMSC
RADIAL PISTON PUMP	4320-123402970	40 EA	\$ [REDACTED] EA	3 / D

Identify end item, weapon system, or class of item: AMPHIBIOUS COMBAT VEHICLE (ACV)

ESTIMATED BASE VALUE: \$ [REDACTED] 0

ESTIMATED TOTAL VALUE (BASE + OPTIONS): \$ [REDACTED]

MAXIMUM CONTRACT VALUE: \$ [REDACTED]

The estimated value is based on the quotes received from the original solicitation. Note – this is a first time buy and was originally solicited under SPE7L324T369F.

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
 - a. IVECO DEFENCE VEHICLES S.P.A. A4249 P/N 60155077
 - i. IVECO DEFENCE VEHICLES S.P.A. is uniquely qualified because it is the only known source with the data or rights necessary to manufacture this item.

The use of the authority cited below:

☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

☒ *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Product Specialist, [REDACTED], certified the technical certification on 09/27/2024.

This item has an AMC/AMSC of 3/D. DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:
☒ The acquisition will be synopsized for 15 days prior to solicitations opening on DIBBS

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that

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Controlled by: DLA Land & Maritime
Controlled by: FL
CUI Category: PROCURE/General Procurement
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

A sources sought was posted on 11/25/2029 for 5 business days. One response was received from BHPE (9SW57) and forwarded the Source Approval Request Guide.

This is a first time buy, and this acquisition was initially solicited under simplified acquisition procedures since it was estimated under \$250,000. Since the quotes received exceeded \$250,000, this requirement is being resolicited under FAR Part 15. The follow vendors submitted quotes on the original solicitation: JGILS (1N8T8), Hoosier Industries (0RCD8), Pioneer Industries (66200), and TNL Sales (1XLG2).

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

A market survey was conducted on September 26, 2024, September 30, 2024. A market survey was sent to Iveco (A4249) on January 17, 2025, with a follow up email sent on January 27, 2025.

Total number of vendors contacted: 5

Hoosier Industries (0RCD8)
JGILS (1N8T8)
Pioneer Industries (66200)
TN Sales (1XLG2)
Iveco (A4249)

Names of vendors contacted and responding: 2

JGILS (1N8T8)
Pioneer Industries (66200)

Techniques used to conduct survey: Email

Types of information requested: Business size, manufacturer or dealer, commerciality, price breaks, minimum order quantity, and estimated delivery

Summary of information received: JGILS (1N8T8) stated they had no interest. Pioneer Industries (66200) is a large business, a dealer, and not the actual manufacturer of the item.

is not a commercial item.

Information received regarding the commerciality of the item(s): Pioneer Industries (66200) stated the item was not commercial. No results were returned on GSA or CID database. Market research did not yield any readily available published catalog price lists, schedules, or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor, and that are available to the general public for inspection. There is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

[x] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

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10. A listing of sources, if any, indicating an interest in the acquisition is:

- a. Pioneer Industries (66200)
- b. BHPE (9SWS7)

11. The following actions are being taken to identify additional sources:

- [X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
- [X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. This is a first time buy therefore there is no previous J&A.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

MITCHELL.JON.F.1079628979  Digitally signed by MITCHELL.JON.F.1079628979
Date: 2025.01.27 10:50:52 -05'00'

Contracting Officer

Date

APPROVAL REQUIREMENTS

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- | | |
|---|---|
| ☒ Up to \$750,000 | Contracting Officer |
| ☐ \$750,000 to \$15,000,000 | Competition Advocate |
| ☐ Over \$15,000,000 to \$100,000,000 | Head of Contracting Activity (HCA) |
| ☐ Over \$100,000,000 | Senior Procurement Executive (AQ)
(DLA General Counsel signature line required when sending to AQ) |

Attachment(s):

1. Technical Data Supporting- Limited Sources